Can Online Dispute Resolution Increase Rural Access to Justice?

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Abstract. Rural Americans face distance, cost, and attorney shortages that keep them from the civil justice system. Online dispute resolution is often proposed as the remedy, and critics respond that it offers rural litigants access without justice. This Note argues that the disagreement resolves at the level of design. Evidence from virtual mediation, from Utah's small claims platform, and from Victoria's tribunal pilot shows that well-designed online processes can match in-person processes, while the failures of form-centered platforms confirm the critics' concerns. The Note proposes an ODR system built for rural litigants on five commitments: certified trust, a guided and facilitated process that does not depend on literacy, due process enforced by design and by amended service-of-process rules, physical access points in public libraries staffed by funded navigators, and continuous evaluation against rural outcomes, sustained by recurring state funding. It applies the system to debt collection, where the critics' objections are strongest, and to divorce, including cases involving domestic abuse, where the platform must screen for and guard against digital coercion. It also answers the four counterarguments that survive those design choices.

I. Introduction

Consider a resident of Conway, Missouri, a town of 729 people.[1] To sue a neighbor, file for divorce, or probate a will, that resident must drive about twenty minutes to the Laclede County courthouse in Lebanon.[2] If the resident wants to (and they can afford to) hire an attorney, they will not find one within Conway's city limits.[3] Twenty minutes is not far by suburban standards, but the miles are only part of the barrier. The trip requires a working vehicle, fuel, and time off work, and the case itself adds filing fees. The travel and filing costs are modest in isolation. Together, they are a steep barrier to justice, and they fall hardest on the residents least able to bear them.[4] The monetary costs are only part of the burden. A wage earner who loses a day of pay to attend a twenty-minute hearing bears an opportunity cost that may exceed the amount in dispute, and a resident without

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1 City of Conway, Missouri, http://www.conwaymo.com (last visited Oct. 21, 2026).

2 *Conway, MO to Laclede County, Missouri Government Center*, Google Maps, https://www.google.com/maps (search "Conway, MO" to "Laclede County Government Center, Lebanon, MO") (last visited Oct. 21, 2026).

3 *Lawyer Search*, The Missouri Bar, https://mobar.org/public/LawyerSearch.aspx (last visited Nov. 17, 2024).

4 *See* Lisa R. Pruitt & Bradley E. Showman, *Law Stretched Thin: Access to Justice in Rural America*, 59 S.D. L. Rev. 466, 478–79 (2014).

reliable transportation may not be able to make the trip at all. For many rural residents, the rational response to a small legal problem is to abandon it.

Online dispute resolution ("ODR") is frequently offered as the answer. ODR moves the traditional forms of alternative dispute resolution (negotiation, mediation, and arbitration) onto the internet.[5] An ODR system may rely on videoconferencing, on asynchronous text-based messaging, on a combination of the two, or on newer tools such as artificial intelligence.[6] Not every videoconferenced mediation is ODR; the term properly describes a platform that structures and supports the dispute resolution process itself.[7] Since the COVID-19 pandemic, many litigants have been able to choose between the same courtroom procedures online or in person, but ODR expands beyond these traditional procedures.[8]

Whether ODR actually expands rural access to justice is contested. Its advantages are well documented: it connects parties who are geographically distant, lowers the cost of resolving a dispute, and offers flexibility and convenience.[9] Critics respond that ODR offers rural litigants access without justice, replicating the self-help resources that have already failed them and accelerating the high-volume litigation in which unrepresented defendants lose.[10]

The question matters most in places like Conway. Urban litigants who distrust online processes can still reach a courthouse, a legal aid office, or a private attorney with modest effort. Rural litigants often cannot. For them, the choice is frequently not between online and in-person dispute resolution but between online dispute resolution and none at all. That asymmetry raises the stakes of getting

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[5] Benjamin G. Davis, *Building the Seamless Dispute Resolution Web: A Status Report on the American Bar Association Task Force on E-Commerce and Alternative Dispute Resolution*, 8 Tex. Wesleyan L. Rev. 529, 530 (2002); *see generally* Ethan Katsh & Orna Rabinovich-Einy, Digital Justice: Technology and the Internet of Disputes (2017) (describing the growth of ODR from e-commerce platforms into courts).

[6] Shekhar Kumar, *Virtual Venues: Improving Online Dispute Resolution as an Alternative to Cost Intensive Litigation*, 27 J. Marshall J. Computer & Info. L. 81, 83, 89 (2009); Amy J. Schmitz & John Zeleznikow, *Intelligent Legal Tech to Empower Self-Represented Litigants*, 23 Colum. Sci. & Tech. L. Rev. 142, 148, 151 (2021).

[7] *See* Schmitz & Zeleznikow, *supra* note 6, at 146.

[8] Andrea C. F. Wolfs et al., *Justice via Chat? How Litigants' Preferences and Attorneys' Recommendations Influence the Choice to Use Online Dispute Resolution*, 30 Psych. Pub. Pol'y & L. 348, 349 (2024).

[9] Anthony J. Fernandez & Marie E. Masson, *Online Mediations: Advantages and Pitfalls of New and Evolving Technologies and Why We Should Embrace Them*, 81 Def. Couns. J. 395, 398–99 (2014).

[10] *See* Michele Statz et al., *"They Had Access, but They Didn't Get Justice": Why Prevailing Access to Justice Initiatives Fail Rural Americans*, 28 Geo. J. on Poverty L. & Pol'y 321, 335–36 (2021); Roni Amit, *Access to Injustice: How Legal Reforms Reinforce Marginalization*, 27 CUNY L. Rev. 1, 4 (2024); Robert J. Condlin, *Online Dispute Resolution: Stinky, Repugnant, or Drab*, 18 Cardozo J. Conflict Resol. 717, 721–22 (2017).

the design right: a poorly designed platform harms rural litigants who have no alternative, and a well-designed one reaches litigants abandoned by the existing system.

The key to whether an ODR system can expand rural access to justice is its design. ODR does not increase rural access to justice when it is deployed as a website that digitizes court forms. It can increase rural access to justice when it is built as a certified, facilitated, and guided process that enforces due process requirements, operates through staffed physical access points such as public libraries, and is evaluated against rural outcomes. The argument proceeds in five steps. Part II sets out the rural access-to-justice problem, defines ODR, describes the court-connected systems in Utah and Victoria, Australia, that have been studied most closely, and sets out the due process framework that governs court-connected ODR. Part III presents the case against ODR as a rural remedy. Part IV reviews the evidence that well-designed virtual processes work, proposes an ODR system built on five design commitments, and applies it to debt collection and divorce. Part V answers the four counterarguments that the design does not resolve on its own. Part VI concludes.

II. Background

A. The Rural Access-to-Justice Problem

Access to justice, meaning both physical access (i.e., proximity) to the courthouse (or its virtual equivalent) and access to legal assistance (e.g., an attorney), is especially limited in rural communities.[11] The barriers are cost, physical distance, and structural inequity.[12] The national baseline is already poor: the Legal Services Corporation found that low-income Americans received no legal help, or not enough, for ninety-two percent of the substantial civil legal problems they faced.[13] Rural geography compounds that deficit. In states such as Arizona and Idaho, roughly two-thirds of

[11] *See* Daria Fisher Page & Brian R. Farrell, *One Crisis or Two Problems? Disentangling Rural Access to Justice and the Rural Attorney Shortage*, 98 Wash. L. Rev. 849, 851–52, 867 (2023); Pruitt & Showman, *supra* note 4, at 470–73; Statz et al., *supra* note 10, at 324–25.

[12] Page & Farrell, *supra* note 11, at 864–65.

[13] Legal Servs. Corp., The Justice Gap: The Unmet Civil Legal Needs of Low-income Americans 8 (Apr. 2022), https://justicegap.lsc.gov.

counties have fewer than one lawyer per 1,000 residents.[14] Scholars describe such places as "legal deserts."[15]

Further, at least one party appears without counsel in roughly three-quarters of state civil cases, and in the courts that hear debt-collection, family, and eviction cases, the figure reaches ninety percent or more.[16] These unrepresented litigants fare worse than their represented counterparts,[17] and forcing them to proceed without counsel is an indignity.[18] An initiative that opens the courthouse door without addressing representation therefore offers access with no assurance of justice.[19]

The problem is also structural. Limited access to justice both reflects and reinforces broader inequality.[20] Rural residents who are economically or socially marginalized are bound by rules they have little power to shape, and without representation they have little practical ability to challenge those rules, particularly in overloaded courts that press parties to settle.[21] Because these residents already lack other resources, policymakers are less responsive to their needs, which entrenches a status quo that favors those with resources.[22]

B. What ODR Is

ODR began in the resolution of e-commerce disputes and has since migrated into public courts.[23] That migration has been rapid: as recently as 2014, by some reports, only one American court used an ODR tool, and by 2019 at least sixty-six courts in at least twelve states did.[24] It combines the

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[14] Stephanie Francis Ward, *2020 State of the Profession Report Shows Dearth of Lawyers in Rural Areas, Attorney Debt Struggles*, A.B.A. J. (July 28, 2020), https://www.abajournal.com/news/article/abas-profession-profile-shows-a-dearth-of-lawyers-in-rural-areas-and-attorney-debt-struggles.

[15] Lisa R. Pruitt et al., *Legal Deserts: A Multi-State Perspective on Rural Access to Justice*, 13 Harv. L. & Pol'y Rev. 15, 64, 71, 90 (2018).

[16] Benjamin H. Barton, *The LLLT Conundrum*, 76 Wash. U. J.L. & Pol'y 5, 6 (2025); *see also* Isabela Ferrari et al., *JudgeGPT: When Progress Meets Precedent*, 40 Berkeley Tech. L.J. 1185, 1219 (2025).

[17] Page & Farrell, *supra* note 11, at 852; Statz et al., *supra* note 10, at 338.

[18] Statz et al., *supra* note 10, at 338.

[19] *Id.* at 340–41.

[20] Amit, *supra* note 10, at 28.

[21] *Id.*

[22] *Id.*

[23] *See generally* Katsh & Rabinovich-Einy, *supra* note 5; *see also* Richard Susskind, Online Courts and the Future of Justice (2019) (arguing that online courts can extend access to justice if designed around users rather than lawyers).

[24] Todd Venook, *Enterprise Justice: Tyler Technologies and the Privatizing Court*, 135 Yale L.J. 1986, 2009 (2026).

advantages of alternative dispute resolution with the low cost and convenience of online communication.[25] Its tools range from simple algorithms that triage disputes to systems that propose settlement terms, and in some designs to systems that render binding decisions.[26] The breakthrough in artificial intelligence in the early 2020s has expanded that range of uses.[27] The spectrum of possible applications is broad: at one end, software sorts claims, schedules sessions, and explains procedure; at the other, an algorithm decides the case. The fairness concerns raised by algorithmic adjudication are substantial, but they do not apply to the supporting functions, such as triaging issues for the court, suggesting settlement terms, and explaining complex procedural rules to litigants with little understanding of the judicial system.[28]

Communication technology has developed in parallel. Current videoconferencing platforms offer end-to-end encryption that keeps proceedings private, and they are well suited to multi-stage mediation, in which the issues in a dispute are separated and resolved in discrete sessions over time.[29] Multi-stage mediation leverages the advantages of remote teleconferencing, permitting more research between sessions.[30] Another format, trialed in Utah, is an asynchronous text-based exchange, which allows parties to participate on their own schedules.[31]

C. ODR in Practice

Courts continue experimenting with ODR implementation, providing cumulative evidence of how different ODR systems work in practice.

Utah was one of the first states to pilot an ODR system as an alternative procedure for processing small claims.[32] Using a federal grant, the state built a platform for small claims cases that assists

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[25] Wolfs et al., *supra* note 8, at 348; *see also* Fernandez & Masson, *supra* note 9, at 396 (defining ODR as the use of ADR procedures and judicial proceedings in an online environment); Kumar, *supra* note 6, at 85.

[26] Samuel D. Hodge, Jr., *Is the Use of Artificial Intelligence in Alternative Dispute Resolution a Viable Option or Wishful Thinking?*, 24 Pepp. Disp. Resol. L.J. 91, 95–96 (2024).

[27] *Id.* at 92–93.

[28] *Id.* at 107–08.

[29] 1 Sarah R. Cole et al., Mediation: Law, Policy and Practice § 15:17 (2024).

[30] *Id.*

[31] Schmitz & Zeleznikow, *supra* note 6, at 148; Devin Cooper, Comment, *Utah, ODR, and the New "Millennial"um*, 35 BYU J. Pub. L. 261, 287 (2021).

[32] *See* Utah Sup. Ct. Standing Order No. 13 (effective Sept. 19, 2018, amended Jan. 27, 2021).

users in filing documents, defending claims, communicating with other parties, learning about the process, and participating in their cases.[33] The platform is part of a broader initiative to increase access to justice for the state's poorer and less-educated residents.[34]

Utah's platform resembles a text-messaging application.[35] The message box reminds participants to remain respectful in the interest of "keep[ing] the conversation moving forward."[36] Parties work with a facilitator and typically have fourteen days to reach a resolution, which the facilitator may extend.[37] If the parties agree, the facilitator helps them prepare a settlement agreement that they sign online; if they do not, the facilitator helps them prepare a trial preparation document, notifies the court, and a trial is scheduled within three weeks.[38] The platform then closes, and the parties cannot retrieve information from it.[39]

Utah's results are mixed. A usability evaluation by the University of Arizona's Innovation for Justice program found serious barriers in the transition from paper summons to the platform, in registration, and in document sharing, and it recommended clearer legal information and user options.[40] Stacy Butler, who directs that program, told the Pew Charitable Trusts that sixty-four percent of Utah small claims defendants never logged in to the platform.[41]

Victoria's results are more encouraging. The Victorian Civil and Administrative Tribunal ("VCAT") piloted ODR specifically to assess its capacity to increase access to justice in small claims.[42] The pilot produced higher respondent participation than the ordinary small claims process, greater convenience, time savings, and easier participation in procedural steps such as submitting evidence.[43]

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[33] Cooper, *supra* note 31, at 286–87.
[34] *Id.* at 286.
[35] *Id.* at 287.
[36] *Id.* at 287–88.
[37] *Id.*
[38] *Id.* at 288.
[39] *Id.*
[40] Stacy Butler et al., The Utah Online Dispute Resolution Platform: A Usability Evaluation and Report ii (Innovation for Justice Program, University of Arizona Sept. 8, 2020).
[41] Pew Charitable Trusts, *How to Evaluate the Litigant Experience as Courts Turn to Online Dispute Resolution*, Pew Charitable Trs. (Jan. 25, 2021), https://www.pew.org/en/research-and-analysis/articles/2021/01/25/how-to-evaluate-the-litigant-experience-as-courts-turn-to-online-dispute-resolution.
[42] Vivi Tan, *Online Dispute Resolution for Small Civil Claims in Victoria: A New Paradigm in Civil Justice*, 24 Deakin L. Rev. 101, 102 (2019).
[43] *Id.* at 127.

British Columbia's Civil Resolution Tribunal, which made online resolution the default path for certain claims, offers a further successful model of full integration into the justice system.[44] These successes are not restricted to the former Commonwealth: in the United States, a smaller study of online platform technology in eight Michigan courts handling minor cases found that online access shortened case duration and sharply reduced default rates, which means that litigants who would otherwise have had to appear in person engaged with their cases rather than abandoning them.[45]

Despite the small success of the ODR system in Michigan, most court-connected ODR in the United States has produced the mixed results seen in Utah. In contrast to the Commonwealth examples, commercialization of ODR technology is the default in the United States, and this may explain the differences in the systems' effectiveness.

Tyler Technologies, which provides basic technological infrastructure for courts in at least twenty-eight states, became a leading ODR provider in 2017 when it acquired Modria, a platform with a history in commercial dispute resolution.[46] Modria's record in the courts has been uneven. Court rules often limited eligibility to litigants who were fluent in English and technologically capable.[47] An evaluation of a Modria pilot in Collin County, Texas, could not recruit a single ODR user for its surveys, upload errors kept eligible cases off the platform, and both parties used the platform in only twelve percent of the cases that reached it.[48] A Florida court processed no cases at all during its pilot, and New Mexico's platform was not available in Spanish or Navajo.[49] One New Mexico stakeholder concluded that the project "appears to have been created to install Modria, rather than by creating a needs analysis."[50] Tyler now appears poised to retire the product.[51]

These systems teach a consistent lesson. Each succeeded to the extent that it was designed around the limitations of its users and failed to the extent that it assumed users would arrive in-

[44] *See* Shannon Salter, *Online Dispute Resolution and Justice System Integration: British Columbia's Civil Resolution Tribunal*, 34 Windsor Y.B. Access Just. 112 (2017).
[45] *See* J.J. Prescott, *Improving Access to Justice in State Courts with Platform Technology*, 70 Vand. L. Rev. 1993, 2030, 2034, 2042–43, 2048 (2017).
[46] Venook, *supra* note 24, at 1989, 2009–10.
[47] *Id.* at 2010.
[48] *Id.* at 2022.
[49] *Id.* at 2022–23.
[50] *Id.* at 2041.
[51] *See id.* at 2009.

formed, equipped, and confident. For rural jurisdictions, that means designing for litigants who may have less formal education, fewer financial resources, unreliable internet access, and no attorney.

D. The Legal Framework: Due Process for Unrepresented Litigants

Any court-connected ODR system operates within the constraints of procedural due process. The foundational requirement is notice. Due process demands "notice reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections."[52] The adequacy of the procedures that follow is measured by balancing the private interest at stake, the risk of erroneous deprivation under existing procedures and the value of additional safeguards, and the government's interest, including its administrative burdens.[53]

Two features of that framework matter for rural ODR. First, it does not guarantee counsel in civil cases. In *Turner v. Rogers*, the Supreme Court held that due process did not categorically require appointed counsel for an indigent parent facing civil contempt, but it conditioned that holding on "substitute procedural safeguards" that reduce the risk of an erroneous outcome.[54] An ODR platform that guides unrepresented litigants through a process is precisely such a safeguard, and its adequacy can be evaluated on the same terms. Second, the framework is flexible. *Mathews* does not prescribe in-person hearings; it asks whether a given procedure adequately protects the interests at stake.[55] An online process that improves notice and participation can therefore satisfy due process more fully than an in-person process that rural defendants cannot reach. The converse is also true. A remote process that a litigant cannot navigate can deny the meaningful hearing that due process requires, and the risk is greatest for unrepresented litigants without reliable internet access.[56] Courts have begun to apply *Mathews* to that question: in 2024, the Oregon Court of Ap-

[52] Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306, 314 (1950).
[53] Mathews v. Eldridge, 424 U.S. 319, 335 (1976).
[54] Turner v. Rogers, 564 U.S. 431, 447–48 (2011).
[55] *See Mathews*, 424 U.S. at 335.
[56] *See* Whitley Holthaus, Note, *Virtual Justice: The Case for Restoring an In-Person Presumption in Court Proceedings*, 60 Gonz. L. Rev. 379, 402–03, 406 (2025).

peals ordered an evidentiary hearing on "the probable value that an in-person hearing would add to reaching an accurate decision" after a man was required to appear remotely at his involuntary commitment hearing.[57] Design, not the medium, determines which side of that line an ODR process falls on.

III. The Case Against ODR as a Rural Remedy

The criticisms of ODR fall into four categories: practical barriers, regulation and trust, communication and security, and the deeper objection that ODR provides access without justice. Each is serious, and each must be answered by any proposal that claims ODR can serve rural litigants.

A. Practical Barriers: Broadband, Hardware, and Legal Deserts

ODR presupposes a connection that many rural residents lack. Only seventy-two percent of rural adults reported having home broadband in 2021, and rural adults were far more likely than urban or suburban adults to describe access to high-speed internet as a major problem in their communities.[58] A capable computer is a further cost.[59] And in legal deserts, no attorney is available to guide a litigant through any process, online or otherwise.[60] Each of these is an independent barrier to using ODR as a rural remedy.

Connectivity is also not the same as capability. A resident who can stream video on a phone may still be unable to upload a scanned document, navigate a registration process, or understand a procedural deadline delivered in legal language. Utah's evaluators found exactly these failures among ordinary users.[61] The device matters as well. Lower-income litigants increasingly expect to reach legal resources through a smartphone rather than a desktop computer, and a system that is not built for mobile use and does not save a user's progress drives unrepresented litigants to abandon

[57] *Id.* at 405.

[58] Emily A. Vogels, *Some Digital Divides Persist Between Rural, Urban and Suburban America*, Pew Rsch. Ctr. (Aug. 19, 2021), https://www.pewresearch.org/short-reads/2021/08/19/some-digital-divides-persist-between-rural-urban-and-suburban-america/.

[59] Statz et al., *supra* note 10, at 346.

[60] *Id.* at 324.

[61] Butler et al., *supra* note 40, at 26, 42, 51.

the process or to pay for help they cannot afford.[62] The problem is not confined to Utah. Roughly one in six American adults between the ages of sixteen and sixty-five is not digitally literate, and those adults tend to be older and less educated than the population as a whole.[63] Reading is a separate barrier: a substantial share of adults cannot comfortably read dense text, and legal procedure produces some of the densest text a layperson will ever encounter.[64] For older residents and residents with limited formal education, who are disproportionately represented in rural communities, a platform that assumes digital fluency excludes the people it is meant to serve.[65] A rural ODR system that ignores digital literacy will reproduce the existing access gap in a new medium.

B. Regulation, Enforceability, and Trust

The absence of regulation is a significant practical hurdle.[66] Without it, the enforceability of agreements reached through ODR is uncertain.[67] A regulatory system must balance the interests of ODR providers (who generally favor fewer rules), individual litigants, mediators, and governments.[68] The same regulatory gap undermines participant buy-in, because parties are reluctant to trust a process whose safeguards are unclear.[69] Existing perceptions compound the problem: potential participants who regard online processes as second-class justice will avoid them even where they are available.[70] Trust is therefore not a secondary concern to be addressed after a platform launches. It determines whether the platform is used at all.

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[62] Christopher Gibson, *ODR Systems to Settle Divorces: How Clinical Legal Education Can Play a Role Using Online Technologies*, 79 Wash. U. J.L. & Pol'y 61, 82–83 (2026).

[63] Saida Mamedova & Emily Pawlowski, A Description of U.S. Adults Who Are Not Digitally Literate, NCES 2018-161 2–3, 6 (U.S. Dep't of Educ., Nat'l Ctr. for Educ. Stat. May 2018), https://nces.ed.gov/pubs2018/2018161.pdf.

[64] *See* Tanina Rostain, *Techno-Optimism & Access to the Legal System*, 148 Dædalus 93, 95 (2019).

[65] *See* Pruitt & Showman, *supra* note 4, at 487–88; Pruitt et al., *supra* note 15, at 29 (reporting lower rates of college completion in rural than urban areas of six states).

[66] Scott J. Shackelford & Anjanette H. Raymond, *Building the Virtual Courthouse: Ethical Considerations for Design, Implementation, and Regulation in the World of ODR*, 2014 Wis. L. Rev. 615, 617.

[67] *Id.* at 623–24.

[68] *Id.* at 644.

[69] *Id.*

[70] *Id.*

C. Communication, Security, and Bias

Online communication can limit the ability of the parties and the mediator to read emotion.[71] The risk of miscommunication is greater for parties separated by culture or language, and it can produce more conflict over time rather than less.[72] Video proceedings have their own limits: eye contact is difficult to simulate, long sessions increase cognitive load and fatigue, and some research suggests that videoconferencing may increase the influence of implicit racial bias, although training may mitigate it.[73] ODR also creates distinct security risks. Parties may struggle to authenticate one another's identity, an impostor or an unseen third party may join a session, and a poorly secured platform may leak the record of a confidential negotiation.[74]

The risk of a leak is not hypothetical, and it reaches beyond any single session. Courts have become frequent targets of cyberattacks. An attack on the Kansas courts compromised the personal data of 150,000 people who had interacted with a Kansas court, and courts in at least ten states have been taken offline by attacks in recent years.[75] The data exposed in such attacks has included Social Security numbers, driver's license numbers, payment card information, and health information, and recovery can take months.[76] Vendor failures pose a separate risk. Security problems involving Tyler Technologies' court software have allowed online access to millions of nonpublic case records, including 260,000 confidential attorney disciplinary records in California, and because so many courts run the same software, a single vulnerability creates converging points of failure across otherwise unrelated jurisdictions.[77] A breach of a court's systems does more than expose data; it undermines public confidence in the courts themselves.[78] Litigants already ask the question that matters: "Who can see what I enter?"[79]

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[71] Fernandez & Masson, *supra* note 9, at 399–400.
[72] *Id.*
[73] Cole et al., *supra* note 29, § 15:17.
[74] Fernandez & Masson, *supra* note 9, at 400–01; Cole et al., *supra* note 29, § 15:17.
[75] Anamaria Pananas, Note, *American Courts and Due Process Are Under (Cyber)-Attack: Modernization Is the Key Solution*, 26 J. High Tech. L. 343, 363–64 (2026).
[76] *Id.* at 364–67.
[77] Venook, *supra* note 24, at 2017, 2034–35, 2047.
[78] *See* Pananas, *supra* note 75, at 360, 378–79.
[79] Gibson, *supra* note 62, at 84.

D. Access Without Justice

The most fundamental objection is that ODR may create new barriers for rural litigants.[80] In legal deserts, an ODR platform may simply replicate the self-help forms and online resources that low-income rural residents already experience as obstacles.[81] On this view, the problem is not access as such. It is that no support awaits rural residents once they pass through the courthouse door, whether that door is a website or the entrance to the county courthouse.[82]

Two consequences follow. First, process-based reforms focus on individual interactions with the justice system and ignore the context in which those interactions occur; increased participation means little if the participants' voices go unheard.[83] Second, a more efficient forum may be exploited by "assembly-line plaintiffs," the high-volume debt collectors and landlords who already prevail against unrepresented defendants, often because those defendants never received adequate notice.[84] An efficient system that inherits those due process failures would deliver worse outcomes for marginalized litigants faster.[85] ODR, as currently designed, does nothing to address debt collectors' disregard of due process.[86] The critique therefore reaches beyond implementation: it questions whether a process reform of any kind can cure a substantive imbalance between repeat players and individuals.[87] A related concern is that technology will create a two-tiered system, in which low-income litigants are relegated to technology-driven tools even when human assistance would be more appropriate, receiving help that is "better than nothing, but still not as good as professional human services."[88] Some critics also warn that ODR and automated triage may pressure litigants into settlements by making the factual and legal exploration of a courtroom harder to reach.[89]

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[80] Statz et al., *supra* note 10, at 335.
[81] *Id.* at 330–31, 335.
[82] *Id.* at 335–36.
[83] Amit, *supra* note 10, at 18.
[84] Daniel Wilf-Townsend, *Assembly-Line Plaintiffs*, 135 Harv. L. Rev. 1704, 1748–49, 1773 (2022).
[85] *Id.* at 1773.
[86] *Id.*
[87] *See* Amit, *supra* note 10, at 18, 28.
[88] Drew Simshaw, *Interoperable Legal AI for Access to Justice*, 134 Yale L.J.F. 795, 807–08 (2025).
[89] Randall B. Wilhite, *The Promise and Perils of AI in Access to Justice*, 38 J. Am. Acad. Matrim. Law. 507, 532 (2026).

IV. Toward an ODR System Built for Rural Litigants

The objections in Part III identify design failures, not inherent limitations. This Part first reviews the evidence that well-designed virtual processes perform at least as well as in-person ones. It then sets out five design commitments for a rural ODR system and applies them in two settings: debt collection, where the critics' objections are strongest, and divorce, including cases involving domestic abuse.

A. Evidence That Well-Designed Virtual Processes Work

Post-pandemic surveys of online mediation participants found that the large majority valued its accessibility, its ease, and its lower cost, and most mediators and representatives reported that they would continue to use virtual mediation.[90] The most rigorous evidence comes from the Equal Employment Opportunity Commission's ("EEOC") study of its own virtual mediations. The EEOC found virtual mediation at least as effective as in-person mediation, and in some respects superior; mediators "clearly preferred" it.[91] Most significantly, the study "revealed that virtual mediation offered greater access to justice," because employees could reach the process more easily and employers' decision-makers could participate.[92] Mediators did not observe increased fatigue or interference with their ability to read body language, and settlement rates were similar or better "without a sacrifice in either distributional or procedural justice."[93]

The format also produced benefits that critics tend to overlook. Virtual mediation was less expensive, allowed experts to participate more cheaply, reduced travel, and shortened sessions, and parties "avoid[ed] the physical 'wear and tear' that often accompanies traditional, in-person mediation."[94] The virtual room is also more neutral than a law firm's conference room, which one party controls through its counsel; "neither party controls the Zoom room."[95] That neutrality re-

[90] Cole et al., *supra* note 29, § 15:17.
[91] Sarah R. Cole & Amanda Spangler, *Virtual Mediation: The Only Door Needed in the Multi-Door Courthouse?*, 52 Stetson L. Rev. 477, 499 (2023).
[92] *Id.* at 499–500.
[93] *Id.* at 500, 503.
[94] *Id.* at 492–93.
[95] *Id.* at 502–03.

duces power imbalances, and physical separation reduces hostility between parties.[96] Comparative work on civil justice technology reports similar results, including high user satisfaction with online family dispute resolution, savings in travel time and cost, and faster resolution.[97]

A larger body of EEOC data confirms these findings. E. Patrick McDermott, drawing on two decades of the agency's mediation program evaluations and more than 1,200 participant surveys from its online video mediations, found that the online settlement rate of roughly seventy-one percent matched the in-person rate.[98] Sixty-eight percent of employers and sixty-three percent of charging parties preferred the online format, and participants rated both the fairness of the process and their satisfaction with the results significantly higher online than in person.[99] Mediators did not observe "Zoom fatigue"; fatigue depended on the length of the session, not its format.[100] Parties also identified the reasons that matter most to rural litigants: online mediation eliminated travel and the costs of parking, child care, and lost work.[101] McDermott himself identified the reduced cost for "those in rural and other areas who often have great distances to travel" as a subject for future research.[102]

The evidence is not unqualified. A pilot program in Collin County, Texas, attracted few participants because litigants were unaware of the option and encountered technical problems, although the evaluators concluded that ODR would likely be as effective as in-person mediation in resolving disputes before trial.[103] Attorney recommendations matter as well: although text-based ODR was the least preferred option, an attorney's recommendation raised its attractiveness to the level of in-person mediation.[104] The EEOC data also carry a caveat that matters for rural courts: they describe only parties who had already crossed the digital divide, and unrepresented charging parties

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[96] *Id.* at 503.

[97] Tania Sourdin et al., *Just, Quick and Cheap? Civil Dispute Resolution and Technology*, 19 Macquarie L.J. 17, 25–26 (2019).

[98] E. Patrick McDermott, *Fitting the Forum to Fit the Fuss—The Rise of Online Video Mediation for Workplace Dispute Resolution*, 40 Ohio St. J. on Disp. Resol. 197, 199, 209, 220–21 (2025).

[99] *Id.* at 221–23.

[100] *Id.* at 219–20.

[101] *See id.* at 210–11, 214.

[102] *Id.* at 226.

[103] Cole et al., *supra* note 29, § 15:17; *see also* Venook, *supra* note 24, at 2022.

[104] Wolfs et al., *supra* note 8, at 354.

reported weaker online skills than other participants.[105] The lesson is that ODR succeeds or fails on implementation. Low uptake, in Utah and in the vendor pilots described in Part II alike, reflects failures of design and outreach rather than litigant preference.[106] Courts can raise it through notice, outreach, and endorsement by trusted intermediaries, including the navigators and librarians this Part proposes to fund and train.

B. Five Design Commitments

1. Certified Trust

People use systems they trust, so trust is the precondition of participation.[107] Commercial platforms build trust through "trustmarks," third-party certifications such as those issued by the Better Business Bureau.[108] The mark tells a consumer, at a glance, that an independent authority has reviewed the site and found it trustworthy.[109] Court-connected ODR platforms could carry an analogous mark certifying their commitments to privacy and procedural fairness, issued either by private certifiers or by a public regulatory body.[110] Transparency reinforces trust. Registration of neutrals and publication of decisions, where confidentiality permits, would give users insight into the process, and a registry of mediators and arbitrators would also supply a vehicle for uniform ethical standards.[111] Publication is inappropriate in domestic disputes, where privacy is paramount, but registration and certification remain available there. Certification matters more for court-connected ODR in the United States than it might elsewhere. Without state oversight, the enforceability of an ODR outcome rests largely on the platform's own user agreement, and trust suffers accordingly.[112] Those agreements are not always benign: Vermont's Office of Legislative Counsel found terms in

[105] McDermott, *supra* note 98, at 203, 217.
[106] *See* Butler et al., *supra* note 40, at 26, 72; *see also* Venook, *supra* note 24, at 2022–23.
[107] Amy J. Schmitz, *"Drive-Thru" Arbitration in the Digital Age: Empowering Consumers Through Binding ODR*, 62 Baylor L. Rev. 178, 237 (2010).
[108] *Id.* at 237–38.
[109] *Id.* at 238.
[110] *See generally* Shackelford & Raymond, *supra* note 66 (proposing a public-private partnership to craft a regulatory scheme).
[111] Schmitz, *supra* note 107, at 237–41; Cole et al., *supra* note 29, § 15:17.
[112] Yun Zhao & Zhiming Xiao, *The Regulatory Framework for Crowdsourced Online Dispute Resolution: Revisiting the Dispute Resolution Triangle*, 26 Pepp. Disp. Resol. L.J. 58, 71 (2026).

Tyler's mandatory e-filing agreement, including a binding arbitration requirement, "presumptively unconscionable" under Vermont law.[113] A certification regime, overseen by an external body, could review court technology for user experience, data portability, and transparency, and courts could then contract only for certified tools.[114] The standards already exist. The ODR Standards published by the National Center for Technology and Dispute Resolution and the International Council for Online Dispute Resolution set a baseline of accessibility, confidentiality, and equality, and the principles of privacy by design (encryption, data minimization, audit trails, and a user's right to delete information) translate them into platform features.[115]

Trust also depends on answers to the communication and security objections in Part III, and those objections are increasingly answerable. Critics worry that technology undermines the therapeutic benefits of in-person mediation and produces an impersonal process in which parties trust each other and the mediator less.[116] The post-pandemic normalization of videoconferencing has eroded much of that concern, and there is evidence that videoconferencing can be as effective as face-to-face interaction in developing empathy.[117] Research suggesting that video proceedings may magnify implicit racial bias remains a concern, but the field data are encouraging: in McDermott's EEOC data, ninety-seven percent of mediators reported no power imbalance from a technology gap that they could not manage, and the evaluators found no evidence that parties to race-discrimination charges rated online mediation less effective than other parties did.[118] Continuing innovation in teleconferencing offers further means of addressing the loss of physical presence.[119] The remaining security risks have technical answers: stronger encryption addresses confidentiality, identity verification at log-in addresses impostors, and platform design can exclude unseen participants.[120] Courts can reduce the risk of attack substantially through ordinary practices such as multi-factor authentication, virtual private networks, data encryption, data backups, staff training, and regular

[113] Venook, *supra* note 24, at 2026–27.
[114] *See id.* at 2056–57.
[115] *See* Zhao & Xiao, *supra* note 112, at 75, 77–78; Gibson, *supra* note 62, at 89–90.
[116] Cole et al., *supra* note 29, § 15:17.
[117] *Id.*
[118] McDermott, *supra* note 98, at 218, 224.
[119] Fernandez & Masson, *supra* note 9, at 401.
[120] Fernandez & Masson, *supra* note 9, at 401; Cole et al., *supra* note 29, § 15:17.

risk assessments.[121] Because no system is perfectly secure, a court that operates an ODR platform also needs an incident-response plan, and when a breach occurs it must tell litigants promptly what data was compromised.[122] The enforceability problem has a legal answer. Legislation can guarantee the enforceability of ODR settlements, which would in turn increase participants' confidence in the process.[123] Finally, attorneys and other trusted intermediaries can increase confidence simply by recommending the process.[124]

2. A Guided, Facilitated Process

An ODR platform must be simple, free, and intelligible to its users, and it must offer rural disputants a better option than traveling to an in-person proceeding.[125] It must also be designed around the disputes it resolves; a platform for e-commerce claims should not look like a platform for domestic disputes.[126] Most important, it must not reproduce the experience of downloading a fillable PDF from a court website.[127] A screwdriver is useless to someone who does not know what it is for. An ODR platform must therefore be both the tool and the manual: it should explain each step, guide users through the process, and assume that many users are not technologically literate. Utah's use of a human facilitator is the right model, because it places a person, rather than a form, on the other side of the virtual door.[128] Legal technology designed this way can mitigate many of the disadvantages that unrepresented litigants face.[129] Artificial intelligence can contribute by triaging disputes, suggesting settlement terms, and explaining procedural rules to litigants unfamiliar with the courts, provided it is not permitted to adjudicate.[130] Courts and legal aid organizations are already deploying such tools. New Mexico's courts use CLARA, a multilingual AI avatar in courthouse kiosks

[121] Pananas, *supra* note 75, at 374–75.
[122] *See id.* at 367, 376–77, 379.
[123] Fernandez & Masson, *supra* note 9, at 401.
[124] Wolfs et al., *supra* note 8, at 354.
[125] Cole et al., *supra* note 29, § 15:17.
[126] Peter Cashman & Eliza Ginnivan, *Digital Justice: Online Resolution of Minor Civil Disputes and the Use of Digital Technology in Complex Litigation and Class Actions*, 19 Macquarie L.J. 39, 47 (2019).
[127] *See* Schmitz & Zeleznikow, *supra* note 6, at 149–50; Statz et al., *supra* note 10, at 335.
[128] Cooper, *supra* note 31, at 287–88.
[129] Schmitz & Zeleznikow, *supra* note 6, at 146–47.
[130] Hodge, *supra* note 26, at 107–08.

and online that answers questions and directs users to services through text or voice, and in Missouri, a tenant legal aid organization developed an AI chatbot that helps tenants determine whether legal aid can address their problem.[131] The National Center for State Courts advises courts to begin with such low-risk uses and to keep a human in the loop, which is the role this proposal assigns to the facilitator.[132]

Guidance cannot assume literacy. A resident may reach a library kiosk with a fast connection and still fail because written instructions, however plain, exceed the resident's reading level, or because the screen itself is intimidating.[133] The guided-process commitment therefore requires a multimodal interface. Each step should be available in more than one form: text written in plain language, audio that reads every prompt aloud, and short interactive video that shows, rather than tells, what the next step requires. The model already exists. A prototype built for simple divorces in Cook County, Illinois, presented the process as a road to the courthouse, placed a guide on that road, showed one step per screen, and could speak every word of the interview aloud in English or Spanish; its designers then built A2J Author so that legal aid lawyers and court administrators could produce guided interviews like it inexpensively.[134] A rural platform should go further, accepting spoken answers and offering a telephone path for users who cannot or will not use a screen. It should be built for a phone first, work on a slow connection, save a user's progress, and offer its instructions in the languages its users speak.[135] It should also be tested before launch with users who have limited literacy and little experience with technology, because those are the users the Utah platform lost.[136] No interface will reach every user. When a user cannot proceed, the platform should route the user to a person, which is why the access-point commitment below pairs every kiosk with a navigator.

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[131] Ferrari et al., *supra* note 16, at 1227–28.
[132] *Id.* at 1220.
[133] *See* Rostain, *supra* note 64, at 95; Mamedova & Pawlowski, *supra* note 63.
[134] Ronald W. Staudt, *All the Wild Possibilities: Technology That Attacks Barriers to Access to Justice*, 42 Loy. L.A. L. Rev. 1117, 1131–33 (2009).
[135] *See* Gibson, *supra* note 62, at 81–83, 87, 89.
[136] *See* Butler et al., *supra* note 40, at 51, 72.

3. Due Process by Design

The access-without-justice critique is strongest where defendants lose by default for lack of notice.[137] *Mullane* requires notice reasonably calculated to reach the defendant, and *Turner* permits a court to proceed without counsel only if substitute procedural safeguards actually function.[138] A court-connected ODR platform could enforce those requirements mechanically: it can refuse to advance a debt-collection or eviction claim until service is confirmed, notify defendants through multiple channels, and flag default requests in cases where the defendant never logged in. A platform that makes notice failures visible would raise the cost of the assembly-line model, increase the likelihood that its claims are contested, and push its practitioners toward settlement. Courts can check the judgments themselves as well. The Los Angeles Superior Court is working with Stanford researchers on an AI tool that reviews default judgments to confirm that they are legally warranted, and early results suggest it may detect errors in up to ten percent of cases, compared with one percent under human review.[139] Finally, guidance aimed at defendants can prevent defaults before they happen, by explaining in plain language what a summons requires and when a response is due.[140]

Software alone cannot build these safeguards. Statutes and court rules, not the platform, define valid service of process. In Missouri, for example, the Supreme Court's rules specify who may serve a summons and how: personal delivery by a sheriff or an adult nonparty, delivery to an adult resident of the defendant's dwelling, or service by mail that is complete only if the defendant returns a signed acknowledgment.[141] The same rules govern when a court may enter a default judgment.[142] A platform administrator cannot redefine valid service, add text messages to the permitted methods, or condition default on digital confirmation. Those changes require action by the body that writes the rules, whether a supreme court exercising its rulemaking power or a legislature.[143] Due process

[137] Wilf-Townsend, *supra* note 84, at 1748–49.
[138] *See* Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306, 314 (1950); Turner v. Rogers, 564 U.S. 431, 447–48 (2011); *cf.* Mathews v. Eldridge, 424 U.S. 319, 335 (1976) (weighing the private interest, the risk of erroneous deprivation, and the government's interest).
[139] Ferrari et al., *supra* note 16, at 1225–26.
[140] *See* Wilhite, *supra* note 89, at 520–21.
[141] Mo. Sup. Ct. R. 54.13; Mo. Sup. Ct. R. 54.16.
[142] *See* Mo. Sup. Ct. R. 74.05.
[143] *See* Mo. Const. art. V, § 5.

by design is therefore a joint project of designers and rulemakers.

Both kinds of rule change have precedent. Utah's Supreme Court created the state's small claims ODR program by standing order, which integrated the platform into the court's procedure while leaving service of the summons to the ordinary rules of civil procedure.[144] New York's legislature went further for consumer debt. In a consumer credit action, the plaintiff must supply an additional notice of the lawsuit for the clerk to mail to the defendant, and the court may not enter a default judgment until twenty days after the mailing, or at all if the notice comes back undeliverable.[145] A rural ODR system should combine the two models. Amended rules should keep traditional service as the constitutional floor, treat the platform's notifications by mail, text message, and e-mail as supplemental notice rather than a substitute, and make the platform's record of those notifications a precondition to default in consumer debt and eviction cases. Supplemental notice is only as reliable as the contact information behind it. Amended rules should therefore require a plaintiff in a consumer debt or eviction case to certify, at filing, the defendant's last known mailing address, telephone number, and e-mail address from its own account records. A text message from an unfamiliar number announcing a lawsuit will also look like a scam to many recipients. The clerk's mailed notice should therefore tell the defendant to expect the text and supply a case-specific access code, so that the defendant can confirm the electronic notice through a channel the defendant already trusts: the mail, a call to the clerk's office, or a visit to the library access point. Digital tracking then reinforces *Mullane*'s guarantee instead of diluting it.

4. Access Points and Infrastructure

Rural ODR requires public investment in infrastructure. The Infrastructure Investment and Jobs Act committed roughly $65 billion to broadband, and forty-three state legislatures have passed or are considering legislation to expand broadband infrastructure.[146] Funding alone will not close the gap. Rural users need publicly available computers and instruction in their use, and without attention to

[144] Utah Sup. Ct. Standing Order No. 13.

[145] N.Y. C.P.L.R. 306-d (McKinney 2025).

[146] Myles Montgomery, *How Lack of High-Speed Broadband Internet Impacts Justice in Rural Areas*, GPSolo, Jan. 2024, at 74, 75; *see also* Infrastructure Investment and Jobs Act, Pub. L. No. 117-58, 135 Stat. 429 (2021).

digital infrastructure, ODR cannot meaningfully close rural civil justice gaps.[147] Public libraries are the natural access points. They are already prevalent in rural communities and already function as resource centers, and an ODR system should place kiosks in them.[148] A skeptic might ask why a resident who cannot reach the courthouse should be expected to reach a library instead. The answer lies in when the resident must appear, not only where. A courthouse requires the resident to arrive at a fixed time on a weekday, while asynchronous ODR lets the resident respond whenever the resident can reach a connection, including after a shift.[149] A library is also a familiar public space rather than the forum in which the resident is being sued. Libraries cannot carry the burden alone, however. Rural libraries have fewer staff than their urban and suburban counterparts, depend primarily on local funding, and lag behind in the technology services they can offer.[150] Public librarians also hesitate to answer legal questions at all, because they are unsure where legal information ends and legal advice, and with it the unauthorized practice of law, begins.[151] A design that asks a rural librarian to walk a defendant through an answer to a debt-collection complaint shifts the legal-aid burden onto a nonlawyer who is neither trained nor protected for the task.

Every kiosk therefore needs a person whose job is to help. Nonlawyer court navigators already provide that help in about half the states: they give procedural information, help with forms, make referrals, and accompany litigants to court, under policies that mark the line between information and advice.[152] Several programs already reach rural litigants remotely. Michigan's pilot connects visitors at unstaffed self-help centers with navigators by video, and Illinois has begun assigning navigators who rotate among the rural courthouses of large multi-county circuits.[153] Alaska, which faces unique access-to-justice problems, has gone further: since 2022, its Community Justice Workers

[147] Statz et al., *supra* note 10, at 342–43.

[148] Statz et al., *supra* note 10, at 346, 363–68; *see also* Wilhite, *supra* note 89, at 531.

[149] *See* Schmitz & Zeleznikow, *supra* note 6, at 148.

[150] Brian Real et al., *Rural Public Libraries and Digital Inclusion: Issues and Challenges*, 33 Info. Tech. & Libr. 6, 6, 12–13, 15–17 (2014).

[151] Sara V. Pic, *Bridging the Gap Between Public Libraries & Law Libraries to Improve Access to Justice*, WebJunction (May 18, 2021), https://webjunction.org/news/webjunction/bridging-the-gap-between-public-libraries-and-law-libraries.html.

[152] Mary E. McClymont, Nonlawyer Navigators in State Courts: Part II—An Update: New Energy, Urgency and Possibilities 4, 12 (Georgetown Justice Lab Oct. 2023), https://www.law.georgetown.edu/tech-institute/wp-content/uploads/sites/42/2025/01/Nonlawyer-Navigators-in-State-Courts.pdf.

[153] *Id.* at 11.

have provided certain legal help throughout the state under the supervision of Alaska Legal Services Corporation.[154] Supervised nonprofit programs of that kind are aimed more directly at low-income clients than the licensing of a new class of independent practitioners, which has produced only a few dozen licensees in each state that has tried it.[155] Remote navigation also answers a distinctly rural problem. Rural communities are marked by a high density of acquaintanceship and a corresponding lack of anonymity, and confidentiality is itself an obstacle to seeking legal help there.[156] A resident sued on a debt or seeking a divorce may not want to explain the problem to a librarian or navigator who is also a neighbor. Conflicts of interest compound the problem: where a county has a single legal aid provider, only one party to a dispute between eligible residents can obtain its services.[157] Pairing a private room at the library with a navigator who works remotely, from a statewide legal aid office or a law school clinic, gives the resident human help without requiring the resident to air private matters before the community. A rural ODR system should fund navigators, or remote clinics supervised by legal aid attorneys, for every library access point, scheduled for the hours when rural residents can actually come in. Law school clinics offer another source of supervised help. The clinic that Suffolk University Law School is building with the American Arbitration Association would staff virtual help desks where users can message, call, or videoconference with supervised students who guide them through the platform's interviews and forms.[158] Missouri's law schools could supply the same help to rural access points across the state. The librarian's role then becomes one that librarians already perform well: hosting the access point, teaching basic computer skills, and referring patrons to the navigator. Law libraries can supply the training that role requires.[159] A library can also offer a private room, which matters for parties who cannot safely participate from home.[160]

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[154] Barton, *supra* note 16, at 13–14.
[155] *See id.* at 11, 13–14, 33.
[156] Pruitt & Showman, *supra* note 4, at 467, 481–82.
[157] Pruitt et al., *supra* note 15, at 117.
[158] Gibson, *supra* note 62, at 64–65, 75–76.
[159] *See* Pic, *supra* note 151.
[160] *See* Erin R. Archerd, *Online Mediation and the Opportunity to Rethink Safety in Mediation*, 52 Stetson L. Rev. 307, 317 (2022).

5. Continuous Evaluation and Governance

Courts currently have little incentive to invest in dispute system design.[161] They should adopt policies requiring routine audits of ODR platforms for discriminatory or otherwise poor outcomes produced by flawed design, and they should adjust platforms in response.[162] Utah's own evaluation demonstrates the value of that discipline: it identified concrete, correctable usability failures that aggregate outcome data would not have revealed.[163] For rural systems, evaluation should specifically measure participation and outcomes for rural users, including default rates. Evaluation should also measure where users quit. In Los Angeles, approximately sixty-four percent of the guided interviews that users started on Tyler's Guide & File platform were never completed, a figure that aggregate filing counts would have concealed.[164] Where a platform uses artificial intelligence, courts should audit it for bias, monitor it for drift as its inputs change, report outcomes by demographic group, and train staff to question its outputs rather than accept them.[165]

Evaluation, and the platform itself, require sustained funding and an institution responsible for both. The system requires investment from community stakeholders and from every level of government.[166] Governance should follow the public-private model that Shackelford and Raymond propose for ODR regulation generally: private developers build and operate platforms, while a public body certifies them, registers neutrals, and sets ethical and data-security standards.[167] That model leaves open the question that matters most to rural courts: who pays after launch. An ODR platform is not a one-time purchase. Courts must budget for subscription or licensing fees, vendor change orders and enhancements, training, user testing, marketing, and evaluation, and their funding options are general operating budgets, grants, and user fees.[168] Security updates and software

[161] Schmitz & Zeleznikow, *supra* note 6, at 181.
[162] *Id.* at 181–82.
[163] Butler et al., *supra* note 40, at 4, 52.
[164] Venook, *supra* note 24, at 2007–08.
[165] *See* Wilhite, *supra* note 89, at 530–31.
[166] Cashman & Ginnivan, *supra* note 126, at 42.
[167] *See* Shackelford & Raymond, *supra* note 66.
[168] *See* Mich. Sup. Ct., State Ct. Admin. Off., Considerations in Implementing Court ODR Systems (Jan. 6, 2020), https://www.courts.michigan.gov/48d7a7/siteassets/court-administration/standardsguidelines/dispute-resolution/odrconsiderations.pdf.

patches add a cost that recurs for as long as the platform holds litigants' data. Grants and one-time federal appropriations, including the broadband funds discussed above, can build infrastructure, but they cannot maintain software indefinitely, and rural county budgets cannot absorb the difference. The same patchwork funding already threatens the sustainability of court navigator programs.[169]

Three features would make the system sustainable. First, the state, through its court administrator, should own and fund the platform, so that its costs are spread across the state's caseload and its maintenance does not depend on the budget of the poorest county it serves. Second, maintenance, security, and navigator staffing should be recurring line items in the judiciary's budget rather than grant-funded projects. User fees are a poor substitute, because a fee charged to every litigant falls on the people the system exists to help. If a state uses fees, they should fall on high-volume filers, the repeat players who file much of the docket and gain the most from an efficient forum. Third, vendor contracts should require security updates, data portability, and a transition plan, so that a court is neither left with an unpatched platform nor locked into one vendor when a contract ends. The public certification described above can enforce those terms. Courts should negotiate those terms deliberately, because the market leaves them little leverage after the fact. American court technology is highly privatized and concentrated in a handful of national vendors, and in the majority of state courts, basic case management already depends on one company's software.[170] Long contracts and existing integrations steer later purchases toward the incumbent vendor, which is how New Mexico came to build its ODR project around a product rather than a needs analysis.[171] Courts can use their purchasing power to demand transparency, adherence to data standards, regular audits of user experience, interfaces that allow third-party tools to connect, and contracts without user-facing arbitration clauses.[172] Adopting an existing framework is also less daunting than building one from scratch, which favors shared standards over bespoke systems.[173]

Utah's facilitated platform and VCAT's pilot are the right starting points, and both can be im-

[169] *See* McClymont, *supra* note 152, at 19–20, 26.
[170] Venook, *supra* note 24, at 1990–91.
[171] *See id.* at 2040–41.
[172] *Id.* at 2055.
[173] *See* Simshaw, *supra* note 88, at 819.

proved along the lines described here.[174] The return on that investment is unusual in public policy. Courts resolve more cases with fewer resources, and unrepresented litigants participate with more support than they receive today. Few reforms benefit both the institution and the individual so directly.

C. Application to Debt Collection and Small Claims

Debt collection is where the access-without-justice critique bites hardest, and it is therefore the right test of the proposal. In the current system, a rural defendant may never learn of a suit, and a collector who files in bulk may obtain a default judgment without contest.[175] Under the proposed system, the case would be filed through the platform. Filing through the platform should be mandatory for high-volume plaintiffs; otherwise, the collectors whose practices the platform is designed to check could simply file on the ordinary docket. The defendant, by contrast, would choose how to participate: online from home, at the library access point, by telephone, or in person at the courthouse. Under amended rules, the platform would not accept a default request until the plaintiff had completed traditional service and the platform had logged supplemental notice to the defendant through at least two further channels, such as mail and text message. The defendant would receive a plain-language explanation of the claim, of the available defenses, and of the nearest library access point, where a navigator could help in person or by video. A facilitator would then offer negotiation through asynchronous messaging over a fixed period, as in Utah.[176] Two further rules keep a collector from simply waiting out that period. First, before negotiation begins, the collector should upload the documents that establish the debt and the collector's title to it, because debt-purchase agreements frequently lack that documentation, and some jurisdictions already require debt-collection plaintiffs to prove the validity of the debt and their title to it even when no defendant appears.[177] Second, if negotiation fails, the defendant must be able to appear at the resulting hearing by video or telephone, from home or from the library access point, so that an impasse cannot become a default at a distant

[174] Cooper, *supra* note 31, at 286–88; Tan, *supra* note 42, at 127.
[175] Wilf-Townsend, *supra* note 84, at 1748–49.
[176] Cooper, *supra* note 31, at 287–88.
[177] *See* Wilf-Townsend, *supra* note 84, at 1746, 1757.

courthouse.

The design changes the incentives of each party. The defendant participates from home or from the library rather than losing a day of work. The collector, facing a defendant who has actually received notice and who has a convenient means of responding, can no longer rely on default and has a stronger incentive to settle on realistic terms. The court resolves more cases without hearings and enters fewer judgments that may later be vacated for defective service. Critics fear that a faster forum will favor the repeat players who already dominate debt-collection and eviction dockets, and the risk is real when efficiency is the only design goal.[178] A system that conditions default on confirmed service, however, converts efficiency from a weapon for repeat players into a safeguard for defendants.[179] The Conway resident, sued on a medical debt in Lebanon, would learn of the suit, understand it, and respond to it without making the drive.

D. Application to Divorce Proceedings

Divorce illustrates how the proposed system would operate.[180] An ideal divorce ODR system would combine e-mediation with tools that help divide finances and structure custody arrangements.[181] If designed for fairness, it would help couples reach mutually acceptable agreements and help each spouse feel heard.[182]

Dafna Lavi identifies three threshold objectives for divorce ODR: convenience, trust in the process, and expertise on the part of the mediator.[183] Lavi's objectives track the "triangle" of convenience, trust, and expertise that Ethan Katsh and Janet Rifkin identified at the field's founding, and early ODR systems tended to favor convenience at the expense of the other two.[184] Convenience requires asynchronous, written communication, so that parties in different locations or on different

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[178] *Id.* at 1773.
[179] *See* Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306, 314 (1950).
[180] *See generally* Dafna Lavi, *No More Click? Click in Here: E-Mediation in Divorce Disputes—The Reality and the Desirable*, 16 Cardozo J. Conflict Resol. 479 (2015) (examining e-mediation in divorce disputes and recommending its expanded use).
[181] *Id.* at 479.
[182] *Id.* at 500, 503, 518.
[183] *Id.* at 515.
[184] Zhao & Xiao, *supra* note 112, at 65–66.

schedules can participate.[185] Trust would follow from the trustmark and registration scheme proposed above. Expertise would require that mediators be trained in ODR and in facilitating divorce online.

Domestic abuse is where the system can do the most good and the most harm. A traditional mediation can itself become a site of injury.[186] Reducing the need to appear in person can preserve the abused party's dignity and protect the party's safety.[187] Physical separation, however, does not neutralize abuse. Technology lets an abuser exercise coercive control across any distance, through monitoring and messaging that require no physical presence.[188] An online session adds risks that an in-person session does not: the mediator cannot see who else is in the room, an abuser may sit just off camera, and a party may be negotiating on a device the abuser monitors.[189] The risk has already materialized in court: during one remote protection-order hearing, the alleged abuser was inside the alleged victim's home in violation of a temporary protection order, and the danger came to light only because a prosecutor noticed that the two parties' video backgrounds looked alike.[190] Asynchronous messaging, which gives a victim time and distance, can also give an abuser a private channel for pressure that no judge or advocate sees. Screening helps, but it is imperfect, because it depends on disclosures that a frightened party may not make.[191]

The platform and its facilitators must therefore manage power imbalances actively rather than assume that distance removes them. Five safeguards follow from the established standards for family mediation and from the particular risks of online sessions. First, the platform should screen every divorce case for abuse before mediation begins and reassess throughout, asking each party

[185] Lavi, *supra* note 180, at 501.
[186] *Id.* at 497–98.
[187] *Id.* at 498.
[188] *See* Molly Dragiewicz et al., *Technology Facilitated Coercive Control: Domestic Violence and the Competing Roles of Digital Media Platforms*, 18 Feminist Media Stud. 609, 609, 610, 612 (2018).
[189] Archerd, *supra* note 160, at 314, 316–18; *see also* Dragiewicz et al., *supra* note 188, at 610.
[190] Holthaus, *supra* note 56, at 408.
[191] Claudia Lanzetta, *Mediation/Collaborative Law: Exploring a New Combination in Alternative Dispute Resolution in Cases of Divorce and Domestic Violence*, 20 Cardozo J. Conflict Resol. 329, 346–47 (2019); Jane C. Murphy & Robert Rubinson, *Domestic Violence and Mediation: Responding to the Challenges of Crafting Effective Screens*, 39 Fam. L.Q. 53, 56, 61, 64 (2005).

confidential questions separately.[192] A positive screen should route the case out of mediation or into a modified process, at the abused party's choice. Second, in a modified process the parties should never message each other directly. Every communication should pass through the facilitator, as in shuttle mediation, and the platform should flag threatening or coercive language before it reaches the other party.[193] Third, before each live session the facilitator should meet privately with each party, confirm that no one else is present or recording, and agree on a signal the party can use to end the session safely.[194] Fourth, the abused party should be able to participate from a secure location, such as a courthouse, a shelter, or a private room at a library access point, and to bring an advocate.[195] Fifth, the facilitator should have authority to suspend or end a session, and a judge should review any agreement reached in a screened case before entering it.

With those safeguards in place, an abused spouse, or someone acting on the spouse's behalf, could begin on the court's website, where the platform would first guide the filing of protective orders and only then the divorce petition. The parties could remain apart throughout, and the abused spouse could resolve the division of assets and custody without direct contact with the abuser and, in a well-designed system, without needing to retain counsel.[196] For amicable divorces, the same platform would allow couples to resolve the matter with minimal court costs and attorney time, including through multi-stage mediation that addresses custody and property in separate sessions.[197]

A model is under construction. Suffolk University Law School's ODR Innovation Clinic, working with the American Arbitration Association, is building a platform for uncontested divorces in Massachusetts, where up to eighty percent of family cases involve a self-represented party.[198] The platform screens for eligibility, guides each spouse through interviews that generate the required

[192] Model Standards of Practice for Family and Divorce Mediation Standard X.A (Ass'n of Fam. & Conciliation Cts. et al. 2001), https://www.collaborativepractice.com/system/files/ModelStandardsOfPracticeForFamilyAndDivorceMediation.pdf; Murphy & Rubinson, *supra* note 191, at 67–70.

[193] Archerd, *supra* note 160, at 321; *see also* Lanzetta, *supra* note 191, at 345 (describing shuttle mediation).

[194] Archerd, *supra* note 160, at 317–19, 324.

[195] *See* Model Standards of Practice for Family and Divorce Mediation, *supra* note 192, at Standard X.D; *see also* Holthaus, *supra* note 56, at 416 (noting that remote appearance can help domestic violence victims appearing from a shelter).

[196] Lavi, *supra* note 180, at 497–98.

[197] Lavi, *supra* note 180, at 495; Cole et al., *supra* note 29, § 15:17.

[198] Gibson, *supra* note 62, at 62, 64–65.

court forms, and supports e-filing, with attention to language access and privacy.[199] When the spouses disagree on an issue, a negotiation module lets each submit preferences privately and request mediation by a supervised law student.[200] Because Massachusetts requires judicial approval of every divorce, a judge still reviews the agreement at an in-person or virtual hearing before granting it.[201] That design pairs the convenience of ODR with the safeguard of judicial review, which is the combination the screened cases described above require.

V. Counterarguments

Part IV answers most of the objections raised in Part III through the design of the proposed system itself. Four objections survive those design choices and warrant separate treatment.

A. The Evidence Comes from Non-Rural Contexts

The EEOC study concerns employment disputes, Utah's and Victoria's systems serve general small claims populations, and none was designed to measure rural outcomes. That limitation is real, and it narrows the claim. The evidence establishes that virtual processes can match or exceed in-person processes on effectiveness, satisfaction, and procedural justice when they are well designed.[202] It does not establish that they will do so for rural litigants. The correct response is not to abandon ODR but to pilot rural systems with the evaluation requirements described in Part IV.B, *supra*, so that rural outcomes are measured rather than assumed.

B. Remote Process Denies Vulnerable Litigants a Meaningful Hearing

A due process objection holds that remote proceedings should be the exception rather than the rule. Studies of remote bail, deportation, and immigration hearings found that parties who appeared by video fared worse than those who appeared in person, and unrepresented parties are more likely to

[199] *Id.* at 74–75, 87.
[200] *Id.* at 88.
[201] *Id.* at 65, 86.
[202] Cole & Spangler, *supra* note 91, at 499–503.

receive an erroneous judgment when they are forced online.[203] Litigants struggle to submit evidence electronically, and a screen hides confusion, cognitive impairment, and coercion that a judge would notice in a courtroom.[204] On this view, courts should restore a waivable presumption of in-person proceedings.[205] The objection is persuasive as applied to proceedings that force litigants online, and the proposal does not. Its strongest advocates acknowledge that remote participation helps parties who must travel long distances or lack transportation and domestic violence victims who would appear from a shelter, which describes many rural litigants.[206] The proposal also answers the objection's specific concerns. The platform is optional for the defendant, who may always choose an in-person hearing; the library access point supplies a reliable connection and a person to help with uploads; the facilitator and navigator watch for confusion; and the screening and session protocols in Part IV address coercion. For the rural litigant, a waivable presumption of in-person process and an optional, supported online process lead to the same place.

A related objection is that mediation's value lies in human presence, which no screen can replicate.[207] The EEOC's experience points the other way. Mediators reported no impairment in reading body language, and employees found the virtual setting a safe space that increased their comfort with the process.[208] For parties with a history of conflict, distance can be a feature rather than a defect, provided that the platform screens for abuse and guards against the coercion that distance can also conceal.[209]

C. The Investment Would Be Better Spent on Lawyers and Courthouses

Building courthouses and placing attorneys in rural communities would address rural access more directly, but at far greater cost.[210] ODR requires investment from community stakeholders and every level of government, but it is the more cost-efficient option, and it complements rather than

[203] *See* Holthaus, *supra* note 56, at 402–04.
[204] *Id.* at 406–08, 411, 414–15.
[205] *Id.* at 415.
[206] *Id.* at 416.
[207] Fernandez & Masson, *supra* note 9, at 399–400.
[208] Cole & Spangler, *supra* note 91, at 500; *see also* McDermott, *supra* note 98, at 210–11, 224.
[209] Lavi, *supra* note 180, at 497–98.
[210] Cashman & Ginnivan, *supra* note 126, at 42.

displaces efforts to address the attorney shortage.[211] The choice is not between ODR and lawyers. It is between ODR and the status quo in counties that have neither enough lawyers nor the prospect of attracting them.

The same objection takes a sharper form in Statz's work: in legal deserts, an online platform reproduces the self-help forms that rural residents already experience as barriers.[212] The objection is correct as applied to form-centered platforms, and that is why the system proposed in Part IV is not one. A facilitator, step-by-step guidance, and funded navigators at a physical access point address the precise deficiency Statz identifies: the absence of support on the other side of the door. The proposal does not claim that ODR substitutes for counsel. Consistent with Page and Farrell's distinction, it addresses the access problem directly and the attorney shortage only partially, by making representation less necessary for routine disputes.[213]

Nor is the alternative of licensing nonlawyer practitioners likely to fill the gap. Washington's pioneering program produced only sixteen active licensees before the state ended it, and the licensees in the states that followed number in the dozens.[214] Defendants in debt-collection cases, moreover, often cannot afford to pay any provider.[215] Benjamin Barton concludes that technology-driven solutions and court navigator programs are "far more likely to help," and the proposal combines both.[216]

D. Navigators, Software, and Artificial Intelligence Will Overstep the Limits of Nonlawyer Help

The unauthorized practice of law is illegal in every state, and nonlawyers generally may not give legal advice.[217] The line has long been drawn between forms and advice: courts have permitted the sale of legal forms but barred nonlawyers from advising customers on how to complete them.[218] A platform that guides a defendant through an answer, and a navigator who helps the defendant use it, may seem to cross that line, and uncertainty about where the line falls has itself stifled innovation

[211] *Id.*
[212] Statz et al., *supra* note 10, at 335.
[213] Page & Farrell, *supra* note 11, at 851–52.
[214] Barton, *supra* note 16, at 10–12, 33.
[215] *See id.* at 26–27.
[216] *Id.* at 8.
[217] *Id.*
[218] *Id.* at 8–9.

in self-help technology.[219] Existing frameworks were not designed to regulate algorithms.[220] The objection identifies a real constraint, but it is a constraint on design, not a bar to the proposal. Court-connected tools already operate on the information side of the line, and legal aid organizations deploying AI limit it to information rather than advice.[221] Navigator programs work under policies that mark the same boundary.[222] Where more is needed, states have changed the rules themselves: Utah and Arizona have created regulatory sandboxes and new categories of licensed practitioners, and Alaska's Community Justice Workers provide supervised legal help under a court rule adopted for that purpose.[223] A court that builds an ODR platform is well placed to authorize, by rule, the guidance that the platform and its navigators provide.

Critics of AI in dispute resolution raise a related concern that algorithms will decide cases opaquely and reproduce bias.[224] The objection applies to algorithmic adjudication, which the proposal does not adopt. AI in the proposed system triages claims, explains procedure, and suggests settlement terms that the parties remain free to reject; a human facilitator or mediator remains responsible for the process.[225] The residual risk lies in the humans who use those tools. Professionals who rely on automated assistance tend to substitute it for their own judgment, and studies show that public-sector decisionmakers are most likely to follow algorithmic advice precisely when it aligns with group stereotypes.[226] Supporting tools can also raise the volume of cases a system handles without increasing the number of people it actually helps.[227] The auditing requirement in Part IV addresses the risk that a supporting tool produces skewed results, and facilitators trained to question the tool's suggestions address the risk that they will defer to it.[228]

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[219] Simshaw, *supra* note 88, at 801.
[220] Wilhite, *supra* note 89, at 526.
[221] Ferrari et al., *supra* note 16, at 1229.
[222] *See* McClymont, *supra* note 152, at 4, 12.
[223] Barton, *supra* note 16, at 7, 12–14; *see also* Wilhite, *supra* note 89, at 527.
[224] *See* Hodge, *supra* note 26, at 107–08.
[225] *Id.* at 107.
[226] S.I. Strong, *Artificial Intelligence in Civil Justice Systems: An Empirical and Interdisciplinary Analysis and Proposal for Moving Forward*, 41 Ohio St. J. on Disp. Resol. 108, 128–29 (2026).
[227] *See* Ferrari et al., *supra* note 16, at 1231.
[228] Schmitz & Zeleznikow, *supra* note 6, at 181–82; Wilhite, *supra* note 89, at 530.

VI. Conclusion

ODR is not a cure for the rural access-to-justice problem, but it is one of the few tools capable of addressing it at scale. Its critics are right about ODR as it has often been deployed: a digitized form offers rural litigants access without justice. The evidence nonetheless shows that well-designed virtual processes match or exceed in-person processes, and the experiences of Utah and Victoria show both what such systems can achieve and where they fail.

The system proposed here answers those failures with five design commitments: trust through certification and transparency, a guided and facilitated process that does not depend on literacy, due process enforced by design and by amended service rules, physical access points staffed by funded navigators and supported by broadband investment, and continuous evaluation against rural outcomes, sustained by recurring state funding. Applied to debt collection, the system would ensure that defendants learn of the claims against them before any default is entered, which removes the assembly-line plaintiff's chief advantage. Applied to divorce, the system would reduce cost and delay for amicable couples and, more importantly, would allow abused spouses to resolve their cases without direct contact with their abusers, provided that the platform screens for abuse and guards against the coercion that distance can conceal.

The proposal also clarifies what ODR cannot do. It does not replace attorneys, and it does not cure the substantive imbalance between repeat players and individuals. It can, however, ensure that rural litigants receive notice, understand their options, participate without traveling, and resolve disputes with the help of a trained neutral. Those are the components of access that rural residents currently lack, and they are the components that technology can most readily supply. The remaining work, including the attorney shortage, requires separate solutions that ODR should complement rather than displace.

The investment is substantial, and it must begin now and continue after the first grants run out. The Conway resident deserves access to justice that is real, and a well-designed ODR system can place the courthouse door a click away rather than a drive away.